

II.
Forms of Bills
in such cases,
and in other
cases.

10. A person entitled to have a new trustee appointed in a case where there is no power in the instrument creating the trusts to appoint new trustees, or where the power cannot be exercised, and seeking to appoint a new trustee.

Bills in the several cases enumerated in Order I. may be in the form and to the effect set forth in Schedule A, hereunder written, as applicable to the particular case; *and in cases not enumerated in Order I., forms of pleading similar in principle may be adopted, as in the forms set forth in Schedule B, hereunder written, whenever more detailed statement may not be necessary to the due development of the case.*

The following are the forms of Bills under the first part of the above Order 2 for cases in which a summary reference may be directed, under the above mentioned 77th Order.

I.
Creditor's Bill
against repre-
sentatives of
deceased
debtor.

By a creditor upon the estate of a deceased person, seeking payment of his debt out of the deceased's assets.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, shews, &c., A. B., of, &c., that C. D., late of, &c., deceased, was at the time of his death, and that his estate still is, justly indebted to him, the said A. B., in the sum of £——, for goods sold and delivered by the said A. B. to the said C. D. (*or otherwise as the case may be, or if the debt is secured by any written instrument, state the date and nature thereof*), and that the said C. D. died in or about the month of —, and that E. F., the defendant hereinafter named, is his executor (*or administrator*), and G. H., of, &c., is his heir at law, (*or devisee under his will, dated —*). To the end therefore that the said A. B. may be paid his said debt with his costs of this suit, and in default thereof that the personal and real estate of the said C. D. may be administered in this Court on behalf of the said A. B., and all the other the unsatisfied creditors of the said C. D., and for that purpose that all proper directions may be given and accounts taken, and that your orator may have such further and other relief in the premises as shall seem meet.

(Pray subpoena, &c.)

NOTE.—This form may be varied according to the circumstances of the case, where the plaintiff is not the original creditor, but has become interested in or entitled to the debt, in which case the character in which he claims is to be stated, as, "to which debt the said A. B. is now entitled as executor or administrator, or legatee or assignee (mediate or immediate) of the said, &c."

For the pray
Order. The
above form, and
April, 1850, is,
real and perso
to the latter.

By a legatee, seeking payment of the testator's personal estate.

To the Honourable,

Humbly complaining, shews, &c., that a legatee to the said deceased, dated the — of —, of —, a named, is the claimant of the said legacy thereon from the said deceased mentioned in the said will at the expiration of the said term (*or the testator's death*), the said legatee being B., (*or unpaid legatee, or unsecured*). The said legatee may be paid (*or may have the said debt secured*), and the said personal estate of the said deceased Court on behalf of the said legatee the said — directions may be given.

(And for further relief, &c.)

NOTE.—This form may be varied according to the circumstances of the case, where the plaintiff is not the original creditor, but has become interested in or entitled to the debt, in which case the character in which he claims is to be stated, as, "to which debt the said A. B. is now entitled as executor or administrator, or legatee or assignee (mediate or immediate) of the said, &c."

For the form of the 77th Order.

This form (2), excepting on the 2, excepting on the 2, arising from the 2, and the above in the 2, applies to the m